

Personal Injury Case Strategy Memo

Internal policy / SOP - for demo purposes only

1. Purpose

This internal memo outlines the firm's general strategy for evaluating, building, and resolving personal-injury cases. It applies to attorneys and case managers handling motor vehicle, slip-and-fall, and premises liability matters.

2. Case Intake and Liability Evaluation

On intake, the case manager shall obtain the police report (if available), photographs from the scene, witness contact information, and the client's account of the incident. Liability is preliminarily evaluated against the comparative-negligence framework: in Illinois, a plaintiff barred from recovery only if more than 50% at fault (modified comparative negligence). Cases with significant comparative fault should be flagged for senior attorney review before committing significant resources.

3. Medical Treatment Tracking

All clients are encouraged to seek immediate medical evaluation following an accident. Gaps in treatment longer than 30 days create credibility risk and reduce settlement value; the case manager shall reach out to clients monthly to ensure continuity of treatment. Missed appointments must be documented in the case file with the reason. Any client who completes fewer than 60% of scheduled treatments shall be reviewed by the responsible attorney before further investment in the case.

4. Spinal Injury Claims

Spinal injury claims require objective evidence -- MRI, CT, or comparable imaging -- to be credible at settlement. The case strategy is to obtain initial imaging within 60 days of the incident and a follow-up study at six months if symptoms persist. Demand letters for spinal claims must include the imaging interpretation, treatment history, and prognosis. Surgical recommendations significantly increase settlement value but also increase the defense's incentive to litigate.

5. Demand Package

A complete demand package includes: cover letter, statement of facts, liability analysis, medical chronology, all medical bills, all medical records, lost-wage documentation, and the demand figure. The demand figure is set at the realistic settlement value plus 25-50% negotiation cushion. The demand package shall not be sent until the client has reached maximum medical improvement or 90 days have passed since the most recent treatment.

6. Pre-Existing Conditions

Pre-existing conditions do not bar recovery but may complicate causation. The firm's strategy is to obtain prior medical records from the relevant period (typically five years pre-incident), distinguish between aggravation of the pre-existing condition and entirely new injury, and obtain an expert opinion explicitly addressing causation. The Eggshell Plaintiff doctrine should be cited where the defendant has aggravated a pre-existing condition.

7. Insurance Carrier Negotiation

Carrier responses to demand are typically received within 30 days. The negotiation SOP is: (a) review the carrier's offer for any factual or legal errors; (b) prepare a written response with the next demand position and supporting authority; (c) keep all communications in writing where possible; (d) avoid in-person meetings without the responsible attorney present. Authority to settle below the client's stated minimum must be obtained in writing.

8. Uninsured / Underinsured Motorist Claims

Where the at-fault party is uninsured or underinsured, the firm pursues UM/UIM coverage on the client's own policy. The UM/UIM policy interpretation must distinguish between stacked and unstacked coverage, set-off provisions, and the binding-arbitration clauses common to such policies. Notice of UM/UIM claim must be provided to the carrier within the policy's stated notification window -- failure to give timely notice is the most common basis for denial.

9. Surveillance and Defense Investigation

Defense carriers commonly conduct surveillance on plaintiffs with significant claimed limitations. The firm's response protocol is to (a) brief clients during intake about the possibility of surveillance; (b) instruct clients to behave consistently with their stated limitations at all times; (c) document any observed surveillance for use in cross-examination; (d) avoid public statements about the case until resolution. Any surveillance concerns flagged by an insurance investigator shall be discussed with the responsible attorney within 24 hours.

10. Statute of Limitations

Illinois statute of limitations for personal-injury claims is generally two years from the date of injury (735 ILCS 5/13-202). Claims against governmental entities have a one-year notice requirement. SOL deadlines must be calendared on intake and reviewed at every monthly case review.